

		As to negligent infliction of emotional distress, the SAC fails to allege any facts showing any duty to plaintiff on defendants' part. (<i>Burgess v. Superior Court</i> (1992) 2 Cal.4th 1064, 1072 [negligent causing of emotional distress is not an independent tort, but is instead the tort of negligence]; <i>Marlene F. v. Affiliated Psychiatric Medical Clinic, Inc.</i> (1989) 48 Cal.3d 583, 588 ["[t]he traditional elements of duty, breach of duty, causation, and damages apply"]; <i>Wooden v. Raveling</i> (1998) 61 Cal.App.4th 1035, 1038 [the duty must be one "assumed by the defendant or imposed on the defendant as a matter of law, or that arises out of a relationship between the two"].) <i>Case Management Conference continued to November 13, 2026 at 8:30 a.m. in Department C44.</i> Clerk to give notice.
10	Wang vs. Liu 2023-01321234	Motion for Terminating Sanctions <i>Continued to CM02. See minute order dated 5/27/26.</i>
11	Yang vs. TBG Construction & Flooring Company, Inc. 2024-01385711	Motion to Set Aside/Vacate Judgment: No tentative.
12	Yu vs. JJC & CO. LLC 2026-01547713	Motion to Compel Arbitration Defendants JJC & CO. LLC, Jifeng Nan and Zhuofan Duan's Motion to Compel Arbitration is GRANTED. "[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine <i>whether the agreement exists</i> and, if any defense to its enforcement is raised, whether it is enforceable." (<i>Mitri v. Arnel Management Co.</i> (2007) 157 Cal.App.4 th 1164, 1169; (Code Civ. Proc., § 1281.2.) "California contract law applies to determine whether the parties formed a valid agreement to arbitrate." (<i>Id.</i> at 1170.) "In determining the existence of an agreement to arbitrate, the trial court must employ a three-step burden shifting process. The party seeking to compel arbitration bears an initial burden to show